

		adequately alleges Plaintiff made the representations regarding future restructuring knowing they were false at the time. Defendant is not required to plead the exact date and time of each communication at this stage. Fifth Cause of Action - Negligent Misrepresentation: This claim arises from the same facts as the fourth cause of action but alternatively pleads that Plaintiff's misrepresentations were negligent. The demurrer is overruled as to this claim for the same reasons as the fourth cause of action. Sixth Cause of Action - Violations of Business & Professions Code § 17200: To allege a UCL claim, Defendant must merely plead business conduct that is unlawful, unfair, or fraudulent. (Bus. & Prof. Code § 17200.) As discussed above, Defendant adequately alleges fraudulent conduct regarding the loan modification and restructuring to support a UCL claim.
3	Larson vs. Murphy 2025-01485707 Demurrer to 2nd Amended Complaint Motion to Strike Portions of 2nd Amended Complaint	Defendants Timothy Murphy, Julianne Murphy, and The Murphy Family Trust's Demurrer to the Second Amended Complaint and Motion to Strike is CONTINUED to November 30, 2026, at 1:45 p.m. in department C-15. The parties/counsel have not engaged in sufficient attempts to meet and confer. Defendant is required to meet and confer "in person, by telephone, or by video conference" before filing a demurrer and motion to strike. (Code Civ. Proc., §§ 430.41, 435.5.) No such meet and confer happen here. (See Guarena Decl., ¶¶ 2-5, Exs. 1-4; Shirazi Decl., ¶¶ 3-13, Exs. A-J.) The parties/counsel are ORDERED to engage in additional attempts to meet and confer in person, by telephone, or by video conference regarding the issues raised in the demurrer and motion to strike. Counsel shall discuss whether a third amended complaint would resolve some or all of the issues raised in the demurrer and motion. If so, the parties should submit a stipulation to file an amended complaint. No later than five court days before the continued hearing date, defendants' counsel is ORDERED to file a supplemental declaration describing compliance with this order, including whether any issues were settled by the code compliant meet and confer efforts.

		Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5.
4	Radcliffe vs. Sharma 2026-01561060 Demurrer to Complaint Motion to Strike Portions of Complaint	Defendants Nina Sharma, D.D.S. and Nina Sharma DDS Inc.'s (NSDI) Demurrer to the Complaint is overruled. "The primary right theory has a fairly narrow field of application. It is invoked most often when a plaintiff attempts to divide a primary right and enforce it in two suits. The theory prevents this result by either of two means: (1) if the first suit is still pending when the second is filed, the defendant in the second suit may plead that fact in abatement or (2) if the first suit has terminated in a judgment on the merits adverse to the plaintiff, the defendant in the second suit may set up that judgment as a bar under the principles of res judicata. The latter application of the primary right theory appears to be most common: numerous cases hold that when there is only one primary right an adverse judgment in the first suit is a bar even though the second suit is based on a different theory or seeks a different remedy." (<i>Crowley v. Katleman</i> (1994) 8 Cal.4th 666, 682.) None of the causes of action improperly split a single cause of action into separate causes of action. They all seek damages for separate conduct: the negligence claim alleges Defendants performed the procedure negligently, the fraud claims allege Defendants misrepresented the extent of the procedure, and the violation of the code sections are distinct causes of action authorized by the Legislature. Thus, the demurrer is overruled on this ground. 2nd and 3rd Causes of Action – Intentional and Negligent Misrepresentation "The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638.) "In California, fraud must be pled specifically; general and conclusory allegations do not suffice. Thus, the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (Id. at 645.) "A plaintiff's burden in asserting a fraud claim against a